



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 06, 2021

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 12362
(TENTH REVISION)

EXPIRATION DATE: 2025-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: U.S. Department of Defense (DOD)
Scott Air Force Base, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes limited maintenance and repair operations to vehicles stowed below deck in the same cargo holds as Class 1 explosives aboard all vessels listed in paragraph 9 of this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 176.164(c) in that the repair work outlined in paragraph 9 of this special permit may be carried out in a cargo space containing Class 1 materials.
5. BASIS: This special permit modification is based on the application of U.S. Department of Defense dated November 19, 2021 and submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Class 1 (explosive materials) (proper shipping name as appropriate)	1.1, 1.2, 1.3, 1.5, 1.6	As appropriate	N/A

7. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

8. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel.

9. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.

b. This special permit applies only to the following named Department of Navy owned vessels while they are operated by Military Sealift Command:

<u>Vessel Name</u>	<u>Hull#</u>
USNS Bob Hope	T-AKR-300
USNS Fisher	T-AKR-301
USNS Seay	T-AKR-302
USNS Mendonca	T-AKR-303
USNS Pililaau	T-AKR-304
USNS Brittin	T-AKR-305
USNS Benavidez	T-AKR-306
USNS Watson	T-AKR-310
USNS Sisler	T-AKR-311
USNS Dahl	T-AKR-312
USNS Red Cloud	T-AKR-313
USNS Charlton	T-AKR-314
USNS Watkins	T-AKR-315
USNS Pomeroy	T-AKR-316
USNS Soderman	T-AKR-317
USNS 1 ST LT Harry L Martin	T-AKR-3015
USNS Shughart	T-AKR-295
USNS Gordon	T-AKR-296
USNS Yano	T-AKR-297

USNS Gilliland	T-AKR-298
USNS SGT Matej Kocak	T-AK-3005
USNS PFC Eugene A Obregon	T-AK-3006
USNS MAJ Stephen W Pless	T-AK-3007
USNS 2 nd LT John P Bobo	T-AK-3008
USNS PEC Dewayne T Williams	T-AK-3009
USNS 2 nd LT Baldomero Lopez	T-AK-3010
USNS 1 st LT Jack Lummus	T-AK-3011
USNS SGT William R Button	T-AK-3012
USNS LCPL Roy M Wheat	T-AK-3016
USNS GYSGT Fred W Stockham	T-AK-3017

c. The charging of vehicle batteries in cargo holds which also contain any Class 1 (explosive) materials is prohibited. However, batteries may be removed from vehicles and charged elsewhere on the vessel, provided:

- (1) Only suitable handling equipment is employed, and
- (2) Adequate precautions are taken to avoid damage to the battery, short circuiting of the battery, and spillage of the electrolyte.

d. The refueling of a vehicle in cargo holds which also contain any Class 1 (explosive) materials may be conducted only if the following conditions are met:

- (1) A portable non-spilling fuel handling system of not more than 5 gallons capacity is used.
- (2) At least two CG approved marine type, Type B, size I or UL approved 5BC portable fire extinguishers, or approved equivalents, are provided in the fueling area.
- (3) At least 2 persons are specifically assigned and are present during the operation, at least one of whom must be experienced in using the portable extinguishers required in the fueling area.
- (4) Engines of all vehicles must be stopped before any refueling is to take place in a cargo hold.

e. A vehicle in the cargo hold of a vessel which also contains any Class 1 (explosive) materials may undergo a Vehicle Exercise and Re-Processing (VERP) session only if the following conditions are met:

- (1) At least one CG approved marine type, Type B, size 1, or UL approved 5BC portable fire extinguisher, or its approved equivalent, is readily available.
- (2) The vehicle must be attended at all times while running.

(3) The vessel's on/offload ventilation system must be in operation to assure adequate ventilation in the space to preclude the accumulation of dangerous fumes.

(4) All vehicle engines must be shut off immediately when breakage or leakage of packages containing flammable liquids or gases, flammable solids, oxidizers, or organic peroxides occurs or is discovered.

(5) All fuel handling devices and unmounted vehicle batteries are removed from the hold before any vehicle engine is placed in operation.

10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

11. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BV/ae